

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
STAFELD SYLVAIN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
DEVEN P. OKVIST, Shield No. 5635, NYPD POLICE
OFFICER DENNIS DIAZ, Shield No. 1270, NYPD
POLICE OFFICER MACAULAY MALDARELLI,
Shield No. 5974, and NYPD POLICE OFFICERS JOHN
AND JANE DOE NUMBERS ONE THROUGH TEN,Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 19, 2023Lara BelkinLara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE DEVEN P. OKVIST, Shield No. 5635, 2820 Snyder Avenue,
Brooklyn, NY 11226

NYPD POLICE OFFICER DENNIS DIAZ, Shield No. 1270, 2820 Snyder Avenue,
Brooklyn, NY 11226

NYPD POLICE OFFICER MACAULAY MALDARELLI, Shield No. 5974, 2820
Snyder Avenue, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

STAFELD SYLVAIN,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
DEVEN P. OKVIST, Shield No. 5635, NYPD POLICE
OFFICER DENNIS DIAZ, Shield No. 1270, NYPD
POLICE OFFICER MACAULAY MALDARELLI, Shield
No. 5974, and NYPD POLICE OFFICERS JOHN AND
JANE DOE NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff STAFELD SYLVAIN, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 2, 2022, at approximately 11:49 p.m., Plaintiff Stafeld Sylvain, while lawfully in the vicinity of Northeast Corner of Glenwood Road and Nostrand Avenue, was subject to an unlawful arrest, detention, and excessive use of force by defendant police officers. In addition, Plaintiff was unlawfully subjected to one (1) day in custody at the 67th Precinct and Kings County Central Booking. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Stafeld Sylvain is a resident of the state of New York.

3. New York City Police Detective Deven P. Okvist, Shield No. 5635, is and was at all times relevant herein an Officer with the New York City Police Department.

4. New York City Police Detective Deven P. Okvist, Shield No. 5635, is being sued in his individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Detective Deven P. Okvist, Shield No. 5635, was assigned to the NYPD 67th Precinct.

6. New York City Police Officer Dennis Diaz, Shield No. 1270, is and was at all times relevant herein an Officer with the New York City Police Department.

7. New York City Police Officer Dennis Diaz, Shield No. 1270, is being sued in his individual and official capacity.

8. Currently and at all times relevant herein, New York City Police Officer Dennis Diaz, Shield No. 1270, was assigned to the NYPD 67th Precinct.

9. New York City Police Officer Macaulay Maldarelli, Shield No. 5974, is and was at all times relevant herein an Officer with the New York City Police Department.

10. New York City Police Officer Macaulay Maldarelli, Shield No. 5974, is being sued in his individual and official capacity.

11. Currently and at all times relevant herein, New York City Police Officer Macaulay Maldarelli, Shield No. 5974, was assigned to the NYPD 67th Precinct.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the

services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on May 5, 2023.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On September 2, 2022, at approximately 11:49 p.m., Plaintiff was lawfully present in the vicinity of the northeast corner of Glenwood Road and Nostrand Avenue, when defendant police officers unlawfully arrested Plaintiff without probable cause or legal justification.

22. Plaintiff was with a group of friends walking to a nearby party.

23. Plaintiff and his friends were standing on the sidewalk chatting when defendant police officers approached them and started yelling at them without any provocation or justification.

24. Plaintiff took out his phone and began to record his interaction with the defendant police officers.

25. A defendant police officer knocked the phone out of Plaintiff's hands and grabbed Plaintiff's neck from behind with both hands when Plaintiff attempted to pick up the phone.

26. At least one defendant police officer sat on Plaintiff's legs, while another defendant police officer continued to grab Plaintiff's neck with both arms and choke him.

27. Plaintiff complained to the defendant police officers that he was being choked and was having trouble breathing.

28. Defendant officers ignored his pleas to stop assaulting him.

29. Defendant police officers began to arrest Plaintiff, restraining him with metal handcuffs.

30. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective, credible basis to believe that Plaintiff was engaged in criminal activity.

31. At no point did defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

32. Plaintiff did not resist arrest at any point.

33. When bystanders on the sidewalk protested the defendant officers' brutal arrest of Plaintiff, one defendant officer pulled out his taser and threatened to tase the crowd of civilians.

34. Plaintiff was then unlawfully arrested and handcuffed by the defendant officers absent legal justification or probable cause.

35. Plaintiff was thrown into the back of an NYPD van, causing his body to slam against the van's interior wall.

36. Plaintiff was then transported to the 67th Precinct against his will.

37. Upon his arrival at the 67th Precinct, Plaintiff was fingerprinted, photographed, and placed in a holding cell.

38. When Plaintiff was brought before the captain of the 67th Precinct, he asked for medical attention for the injuries he sustained during the course of his unlawful arrest.

39. Plaintiff was denied medical treatment.

40. Plaintiff was transported to Kings County Central Booking, where he was again processed and placed in a holding cell.

41. While in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff had committed a crime.

42. Specifically, the defendant police officers falsely represented to the Kings County District Attorney's Office that Plaintiff had been engaged in Attempted Criminal Possession of a Weapon in the Second Degree and related charges.

43. On September 3, 2022, after approximately twenty-four (24) hours of unlawful detention, Plaintiff was arraigned in criminal court and, based on the defendant officers' false allegations, he was released on supervised release.

44. Plaintiff made approximately six (6) in person appearances in court in the months following his release.

45. On or about January 30, 2023, all charges against the plaintiff were dismissed and sealed.

46. Plaintiff requires weekly sessions at a physical therapy facility for the injury and pain in his right arm caused by the excessive force defendant officers used to effectuate his unlawful arrest in this incident.

47. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting and confining Plaintiff.

48. The unlawful arrest and confinement by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

49. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

50. Defendants owed a duty of care to Plaintiff.

51. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, seizing and tightly handcuffing him, choking him and throwing him into a police van.

52. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

53. All of the foregoing occurred without any fault or provocation by Plaintiff.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

57. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

58. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

59. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

60. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

63. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

64. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

65. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION
False Imprisonment

66. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

68. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and affect as if more fully set forth at length herein.

73. The use of excessive force by defendants by, amongst other things, grabbing his neck, sitting on his legs, and throwing him into the back of an NYPD van, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

74. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

75. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

76. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

77. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

78. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

82. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

83. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

85. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

86. Those defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

87. Defendants failed to intervene to prevent the unlawful conduct described herein.

88. As a result of the foregoing, Plaintiff suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

89. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

93. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

94. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

95. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

96. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

97. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

98. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

99. Defendants were at all times agents, servants, and employees acting within

the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION **Malicious Prosecution**

102. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

103. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

104. Defendants commenced and continued a criminal proceeding against Plaintiff.

105. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

106. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION **Assault**

107. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

108. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real of apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

109. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

110. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

111. The City, as the employer of the officer defendants, is responsible for their

wrongdoing under the doctrine of *respondeat superior*.

112. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

TWELFTH CAUSE OF ACTION
Battery

113. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

114. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered Plaintiff when they, in a hostile and/or offensive manner, roughly grabbed the plaintiff by his neck, effecting an arrest of Plaintiff without his consent involving excessively and unreasonably tight handcuffs, and with the intention of causing harmful and/or bodily contact to the Plaintiff and caused such battery.

115. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

116. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of the defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

118. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRTEEN CAUSE OF ACTION

Individual Defendant Officers' Violations of Plaintiff's AC 8-802 Rights

119. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

120. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

121. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

122. The defendant officers, while in uniform, unlawfully seized, frisked, and

searched Plaintiff, before detaining plaintiff and further causing his detention for approximately four (4) days in total.

123. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

124. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

125. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

126. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

127. The defendant officers that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

128. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

129. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officers' Violations of Plaintiff's AC 8-802 Rights

130. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

131. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

132. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

133. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

134. The acts of defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

135. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately four (4) days in total.

136. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

137. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

138. Defendant officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

139. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

140. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

141. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

142. Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

143. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

144. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

145. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

146. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

147. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

148. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the individual defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

149. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff STAFELD SYLVAIN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
July 19, 2023

Lara Belkin

Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD DETECTIVE DEVEN P. OKVIST, Shield No. 5635, 2820 Snyder Avenue,
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NYPD POLICE OFFICER MACAULAY MALDARELLI, Shield No. 5974, 2820
Snyder Avenue, Brooklyn, NY 11226

ATTORNEY'S VERIFICATION

LARA BELKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 19, 2023

Lara Belkin

LARA BELKIN ESQ.